

SUPPLEMENTAL NOTICE OF DEDICATORY INSTRUMENTS
for
COLUMBIA LAKES HOMEOWNERS ASSOCIATION

THE STATE OF TEXAS §
 §
 COUNTY OF BRAZORIA §

The undersigned, being the authorized representative for Columbia Lakes Homeowners Association ("Association"), a property owners' association as defined in Section 202.001 of the Texas Property Code, hereby supplements instruments entitled "Instrument to Record Dedicatory Instruments", "Instrument to Record Dedicatory Instruments", "Supplemental Notice of Dedicatory Instruments for Columbia Lakes Homeowners Association", "Supplemental Notice of Dedicatory Instruments for Columbia Lakes Homeowners Association" and "Supplemental Notice of Dedicatory Instruments for Columbia Lakes Homeowners Association" recorded in the Official Public Records of Real Property of Brazoria County, Texas under Clerk's File Nos. 2005062032, 2013023207, 2020075991, 2024045970 and 2025048016 (the "Notice") was filed of record for the purpose of complying with Section 202.006 of the Texas Property Code.

Additional Dedicatory Instrument. In addition to the Dedicatory Instruments identified in the Notice, the following documents are Dedicatory Instruments governing the Association.

- **Fining Policy for Columbia Lakes Homeowners Association.**
- **Certificate of Secretary of Columbia Lakes Homeowners Association adopting Common Area Rules and Regulations.**

True and correct copies of such Dedicatory Instruments are attached to this Supplemental Notice.

This Supplemental Notice is being recorded in the Official Public Records of Real Property of Brazoria County, Texas for the purpose of complying with Section 202.006 of the Texas Property Code.

Executed on this 13th day of May, 2026.

**COLUMBIA LAKES
HOMEOWNERS ASSOCIATION**

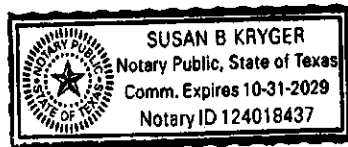
By:

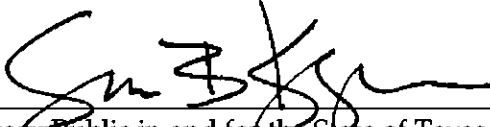


Cliff Davis, authorized representative

THE STATE OF TEXAS §
 §
COUNTY OF HARRIS §

BEFORE ME, the undersigned notary public, on this 13th day of May, 2026 personally appeared Cliff Davis, authorized representative for Columbia Lakes Homeowners Association, known to me to be the person whose name is subscribed to the foregoing instrument, and acknowledged to me that he executed the same for the purpose and in the capacity therein expressed.





Notary Public in and for the State of Texas

FINING POLICY
for
COLUMBIA LAKES HOMEOWNERS ASSOCIATION

STATE OF TEXAS §
 §
COUNTY OF BRAZORIA §

I, James McGuire President
~~Secretary~~ of Columbia Lakes

Homeowners Association, a Texas non-profit corporation ("Association"), do hereby certify that, in the open session of a properly noticed meeting of the Association's Board of Directors ("Board"), duly called and held on the 28th day of April, 2026, with at least a quorum of the Board members being present and remaining throughout, and being duly authorized to transact business, the following Fining Policy was approved by at least a majority the Board members in attendance.

RECITALS

1. Article III, Section 21(f) of the Association's Bylaws authorizes the Board of Directors to adopt, establish, and amend from time to time at the discretion of the Board, a fine schedule and/or fine policy for any infraction of the Association's Dedicatory Instruments [as that term is defined in Texas Property Code Section 202.001(1)].

2. The Association's Board of Directors desires to adopt the following Fining Policy.

COLUMBIA LAKES HOMEOWNERS ASSOCIATION
FINING POLICY

The Recitals are fully incorporated herein by reference.

1. This Fining Policy ("Policy") replaces and supersedes any previous fining policy or similarly named document adopted by the Columbia Lakes Homeowners Association ("Association") including, but not limited to, the Fining Policy filed in the Official Public Records of Real Property of Brazoria County, Texas under Clerk's File 2019044324.
2. All capitalized terms in this Policy have the same meaning ascribed to them in the Restrictions Columbia Lakes, Section 1 recorded in the Official Public Records of Real Property of Brazoria County, Texas under Volume 1128, Page 911, as amended or supplemented (collectively the "Declaration") unless otherwise defined in this Policy.

"Owner" as used in this Policy shall mean the record owner, whether one or more persons or entities, of a fee simple title to a Lot, including executory contract sellers, but excluding those having such interest merely as security for the performance of an obligation.

3. Each Owner is responsible for assuring that the Owner and the Owner's family members, tenant(s), occupant(s), guest(s), and invitees comply with the provisions of the Association's Dedicatory Instruments [as that term is defined by Texas Property Code Section 202.001(1) or its successor statute] that are applicable to the properties under the jurisdiction of the Association. In the event that an Owner, tenant, occupant, guest, or invitee of an Owner violates any of the provisions of the Dedicatory Instruments, the Association's Board of Directors ("Board") shall have the authority to impose a fine as described below upon the Owner and/or occupant of a Lot under the jurisdiction of the Association.
4. The Association shall, before a fine is imposed, send the Owner of the Lot the notice required by law, if any. The Board may, in its sole and absolute discretion, also provide the notice required by law, if any, to the occupant(s) of the Lot.
5. If the violation continues from day to day without intervening activity (a "Curable Violation") as determined at the sole and absolute discretion of the Board, the Fine Schedule will be as follows:

\$100.00 per day until corrected

5.1 Curable Violations - By way of example and not in limitation, the following are examples of Curable Violations:

- a. An ongoing parking violation.
- b. A maintenance violation.
- c. An ongoing noise violation.

6. If the violation consists of single occurrence (an "Uncurable Violation") or separate occurrences (i.e., repeat instances of an Uncurable Violation) as determined at the sole and absolute discretion of the Board, the Fine Schedule will be as follows:

First Violation: \$100.00 per occurrence

Each Additional Similar or Substantially Similar Violation: \$200.00 per occurrence

6.1 Uncurable Violation - A violation that has occurred but is not a continuous action or a condition capable of being remedied by affirmative action. By way of example and not in limitation, the following are examples of Uncurable Violations:

- a. An act constituting a threat to health or safety.
- b. A one-time or non-ongoing parking violation.
- c. A one-time noise violation that is not ongoing.

7. Notwithstanding any language to the contrary in this Policy, the Fine Schedule for a violation of any term or provision of Article III (Architectural Control) of the Declaration will be as follows:

\$200.00 per day until corrected

8. If an Owner is entitled to an opportunity to cure a violation and a hearing is properly requested by the Owner in response to the Association's notice under Texas Property Code Section 209.006, the Owner has the right to submit a written request for a hearing to discuss and verify facts and resolve the matter in issue before the Association's Board of Directors. The Association shall hold the hearing not later than the thirtieth day after the date the Board receives the Owner's request for a hearing and shall notify the Owner of the date, time, and place of the hearing not later than the tenth day before the date of the hearing. The Board or the Owner may request a postponement, and, if requested, a postponement shall be granted for a period of not more than ten (10) days. Additional postponements may be granted by agreement of the parties. The Owner or the Association may make an audio recording of the meeting. Not later than ten (10) days before the Association holds the hearing, the Association shall provide to Owner a packet containing all documents, photographs, and communications relating to the matter the Association intends to introduce at the hearing. If the Association does not provide the packet within the period described, Owner is entitled to an automatic fifteen (15) day postponement of the hearing. During the hearing, a member of the Board or the Association's designated representative shall first present the Association's case against the Owner. The Owner or the Owner's designated representative is entitled to present the Owner's information and issues relevant to the dispute.
9. Per Texas Property Code Section 209.006(d), an Owner is not entitled to notice of a fine being levied for a violation for which the Owner was previously given notice under the Property Code and the opportunity to exercise any rights available under the Property Code in the preceding six months.
10. The Board is hereby authorized in its sole and absolute discretion to impose a lesser fine or no fine at all for a violation of the Dedicatory Instruments. Any adjustment to the Fine Schedule by the Board shall not be construed as a waiver of the Fine Schedule or the Dedicatory Instruments.
11. The Association, acting through the Board, may, without further approval of or action needed by the Board other than the adoption of this Policy in the open session of a properly noticed Board meeting and filing this Policy in the Official Public Records of Real Property of Harris County, Texas, levy a fine on an Owner for a violation(s) of the Association's Dedicatory Instruments.
12. This Policy is in addition to any other remedy the Association may have to pursue a violation of the Association's Dedicatory Instruments and in no way limits or estops the Association from pursuing any other remedy to enforce the Association's Dedicatory Instruments.

I hereby certify that I am the President of the Association and that the foregoing Fining Policy was approved as set forth above and now appears in the books and records of the Association.

COLUMBIA LAKES HOMEOWNERS ASSOCIATION

By: 
As ~~Secretary~~ of the Association
President

Name Printed: James M^r Givish

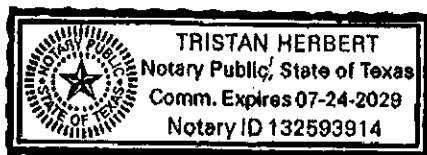
THE STATE OF TEXAS

COUNTY OF Brazoria

BEFORE ME, the undersigned notary public, on this 28th day of April

2026, personally appeared James McGuire, as
President

Secretary of Columbia Lakes Homeowners Association, known to me to be the person whose name is subscribed to the foregoing instrument, and acknowledged to me that s/he executed the same for the purpose and in the capacity therein expressed.



Isaiah Herbert
Notary Public in and for the State of Texas

CERTIFICATE OF SECRETARY
of
COLUMBIA LAKES HOMEOWNERS ASSOCIATION
adopting
COMMON AREA RULES AND REGULATIONS

STATE OF TEXAS §
 §
 COUNTY OF BRAZORIA §

I, James McQuire ^{President} Secretary of Columbia Lakes Homeowners

Association ("Association"), do hereby certify that in the open session of a properly noticed meeting of the Board of Directors of the Association, duly called and held on the 28th day of April, 2026, with at least a quorum of the Board members being present and remaining throughout, and being duly authorized to transact business, the following Common Area Rules and Regulations were duly approved by at least a majority vote of the members of the Board present at the meeting.

RECITALS

1. "Common Area" as used in these Common Area Rules and Regulations ("Rules") shall mean any property, real or personal, owned by the Columbia Lakes Homeowners Association ("Association"), under the jurisdiction of the Association, or under the control of the Association. Common Area shall include the private streets located in any subdivision under the jurisdiction of the Association.

2. Article III, Section 21(b) of the Amended and Restated Bylaws of Columbia Lakes Homeowners Association filed at Clerk's File No. 2024045970 in the Official Public Records of Real Property of Brazoria County, Texas, as amended or supplemented, if any (the "Bylaws") states that the Association's Board of Directors ("Board") has the authority to:

Provide for the operation, care, upkeep, and maintenance of all of the Common Area including establishing rules and regulations governing the use of the Common Area and establishing fines and/or penalties for the infraction thereof including, but not limited to, suspending a Member's right (or a tenant's right) to use the Common Area to the extent allowed by law.

3. Article III, Section 21(k) of the Bylaws states that the Association's Board has the authority to:

Suspend a Member's right (or a tenant's right) to use Common Area during any period in which such Member: (i) has failed to pay an assessment (or any portion thereof) or any other charge (or any portion thereof) authorized by the Association's Dedicatory Instruments or state law; or (ii) has failed to pay or reimburse the Association for the actual cost to repair any damage to Association Common Area or to any other real or personal property that the Association maintains that is caused by the Member or the Member's guest(s), tenant(s), invitee(s), etc.; or (iii) or such Member's family member(s), guest(s) or tenant(s) has violated the Association's Dedicatory Instruments and the Member has been notified of such violation in writing by the Association.

4. Bylaws Article III, Section 21(f) authorizes the Association to levy fines for a violation(s) of these Rules.

5. Pursuant to its authority to do so, the Association's Board desires to adopt, and hereby adopts, the following Common Area Rules and Regulations.

COMMON AREA RULES AND REGULATIONS

The Recitals are fully incorporated herein by reference.

1. All capitalized terms in this Common Area Rules and Regulations ("Rules") shall have the same meanings as that ascribed to them in the Restrictions Columbia Lakes, Section 1 filed at Volume 1128, Page 911 et seq. in the Official Public Records of Real Property of Brazoria County, Texas, as amended or supplemented, if any (collectively the "Declaration").
2. "Owner" as used in these Rules shall mean the record owner(s), whether one or more persons or entities, of fee simple title to a Lot under the jurisdiction of the Association, including executory contract sellers, but excluding those having such interest merely as security for the performance of an obligation.
3. Each Owner is responsible for assuring that the Owner and the Owner's family members, tenant(s), occupant(s), guest(s), and invitees comply with these Rules.
4. When using Columbia Lakes Homeowners Association ("Association") Common Area, all Owners, residents, tenants, guests, and invitees of Owners must conduct themselves in a manner that does not interfere with the: (a) enjoyment of the Common Area by other persons; and/or, (b) rights and privileges of other persons to use the Common Area.
5. Any behavior or condition of an Owner, resident, tenant, guest, and/or invitee of an Owner that constitutes a threat to public health or safety shall result in the immediate expulsion of that person from the Common Area and may result in the expulsion from Common Area of all persons in the offending person's party or group. The failure of a

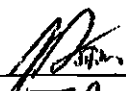
person(s) to leave Common Area after being instructed to leave for a violation of this provision may result in law enforcement being called.

6. No Owner, resident, tenant, guest, or invitee may cause, whether intentional or unintentional, any type of physical damage to the Common Area. Each Owner is responsible for any costs to repair damage to Common Area, whether the damage is caused intentionally or unintentionally, caused by the Owner or the Owner's resident(s), tenant(s), guest(s), or invitee(s). "Physical damage" as used in these Rules shall include, but not be limited to, damaging in any manner, breaking, defacing, apply graffiti in any manner, and/or painting Common Area. In addition to reimbursing the Association for the cost of damage to the Common Area, the Association may fine the offending party in accordance with the Association's Fining Policy (or similarly named document).
7. Fireworks, explosives, and/or explosive devices of any kind are prohibited from being carried, placed, and/or detonated on Common Area at any time.
8. No Owner or other person may disseminate, post, or otherwise display or distribute any written information including, but not limited to banners, handbills, newsletters, flyers, leaflets, and the like of any nature, content, or kind, in a Common Area unless otherwise allowed by law or authorized in writing (which includes email) by the Board.
9. No Owner or other person may place, or cause to be placed, any type of sign, banner, billboard, or similar item on Common Area. The Board has the sole and absolute discretion to determine if a sign, banner, billboard, or similar item placed in the Common Area by an Owner or other person constitutes a violation of this provision. The Board may cause any violation of this provision to be removed from the Common Area with no notice to the party that placed the sign, banner, billboard, or similar item in the Common Area.
10. No Owner or other person may place, or cause to be placed, any type of personal property including, but not limited to, furniture, recreational equipment, holiday decorations, lighting, plants, planters, and landscaping of any type in the Common Area. The Board has the sole and absolute discretion to determine if personal property placed in the Common Area constitutes a violation of this provision. The Board may cause any violation of this provision to be removed from the Common Area with no notice to the party that placed the personal property in the Common Area.
11. No vehicle (whether motorized or unmotorized) or trailer of any type shall be parked, kept, or stored for any amount of time on a private street in any subdivision under the jurisdiction of the Association between the hours of 10:00 p.m. and 5:00 a.m.
12. The Association reserves the right to tow or otherwise remove any vehicle (including golf carts and side-by-sides), trailer, or other obstruction from any private street in any subdivision under the jurisdiction if such vehicle, trailer, or other obstruction: (a) blocks emergency vehicle access; (b) is parked or situated in whole or in part on a marked fire lane; (c) blocks (or partially blocks) the driveway or gate of a Lot; or (d) is parked, kept, or stored in violation on number 11 of these Rules.

13. All golf carts and vehicles commonly called "side-by-side vehicles" or "utility terrain vehicles" shall be registered with the Association. A one time registration fee of ten dollars (\$10) per golf cart/vehicle is required. Each golf cart/vehicle contemplated by this provision shall display an Association issued registration number clearly visible and affixed to the rear of the golf cart/vehicle.
14. The Association shall allow a fourteen (14) day grace period for an Owner who is given notice of a violation of number 13 above to register the golf cart/vehicle with the Association as required by these Rules before imposing a fine.
15. Each golf cart/vehicle contemplated by number 13 of these Rules shall be operated by a driver with a valid unexpired driver's license who is at least sixteen (16) years of age.
16. The Board may, in its sole and absolute discretion, impose a fine on any Owner who violates these Rules in accordance with the Association's Fining Policy (or similarly named document). The Association shall, before a fine is imposed, send the Owner the notice required by law, if any. The Association may also pursue any other legal remedy the Association has under the Association's governing documents and/or state law to pursue a violation of these Rules.
17. In addition to towing and/or fining as provided above, the Association may file a lawsuit against any party that violates these Rules seeking all legal remedies available to the Association. A lawsuit is a remedy that is in addition to, not in lieu of, towing and/or imposing a fine.
18. These Rules replace and supersede any previously recorded or implemented policy that addresses the subjects contained herein, if any, adopted by the Association. Notwithstanding any language to the contrary in these Rules, these Rules do not replace and supersede the Community Common Rules filed at Clerk's File No. 2025048016 in the Official Public Records of Real Property of Brazoria County, Texas, as amended or supplemented, if any.

I hereby certify that I am the duly elected, qualified and acting President of the Association and that the foregoing Common Area Rules and Regulations were approved by not less than a majority vote of the Association's Board of Directors as set forth above and now appears in the books and records of the Association, to be effective upon recording in the Official Public Records of Real Property of Brazoria County, Texas.

COLUMBIA LAKES HOMEOWNERS ASSOCIATION

By: 
 Its: Secretary/Treasurer

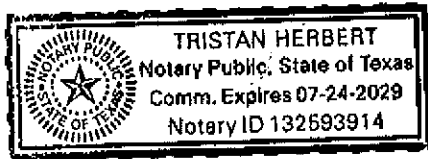
Printed: James McBurn

THE STATE OF TEXAS

COUNTY OF Brazoria§
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BEFORE ME, the undersigned notary public, on this 28th day of April
 2026, personally appeared James McGuire ^{President} as Secretary of

Columbia Lakes Homeowners Association, known to me to be the person whose name is subscribed
 to the foregoing instrument, and acknowledged to me that s/he executed the same for the purpose
 and in the capacity therein expressed.



Tristan Herbert
 Notary Public in and for the State of Texas

FILED and RECORDED

Instrument Number: 2026022879

Filing and Recording Date: 05/13/2026 09:53:41 AM Pages: 12 Recording Fee: \$65.00

I hereby certify that this instrument was FILED on the date and time stamped hereon and RECORDED in the OFFICIAL PUBLIC RECORDS of Brazoria County, Texas.



A handwritten signature in black ink, which appears to read "Joyce Hudman".

Joyce Hudman, County Clerk
Brazoria County, Texas

ANY PROVISION CONTAINED IN ANY DOCUMENT WHICH RESTRICTS THE SALE, RENTAL, OR USE OF THE REAL PROPERTY DESCRIBED THEREIN BECAUSE OF RACE OR COLOR IS INVALID UNDER FEDERAL LAW AND IS UNENFORCEABLE.

DO NOT DESTROY - Warning, this document is part of the Official Public Record.

cclerk-sierra